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Anmelde-Nr:
Application No: 08 715 639.4
Demande n°:

The examination is being carried out on the **following application documents**

Description, Pages

1-26 as originally filed

Claims, Numbers

1-15 as originally filed

Drawings, Figures

1 as originally filed

Reference is made to the following documents:

- D1 O'MAHONY R ET AL: "Bactericidal and anti-adhesive properties of culinary and medicinal plants against Helicobacter pylori",
WORLD JOURNAL OF GASTROENTEROLOGY, WJG PRESS, CN,
vol. 11, no. 47, 1 January 2005 (2005-01-01), pages 7499-7507,
XP003023870,
ISSN: 1007-9327
- D2 BHATIA K ET AL: "Aqueous extract of Trigonella foenum-graecum L.
ameliorates additive urotoxicity of buthionine sulfoximine and
cyclophosphamide in mice",
FOOD AND CHEMICAL TOXICOLOGY, PERGAMON, GB,
vol. 44, no. 10, 1 October 2006 (2006-10-01), pages 1744-1750,
XP025065515,
ISSN: 0278-6915
[retrieved on 2006-10-01]
- D3 STARK A ET AL: "THE EFFECT OF AN ETHANOL EXTRACT DERIVED
FROM FENUGREEK (TRIGONELLA FOENUM-GRAECUM) ON BILE
ACID ABSORPTION AND CHOLESTEROL LEVELS IN RATS",
BRITISH JOURNAL OF NUTRITION, CAMBRIDGE UNIVERSITY
PRESS, CAMBRIDGE, GB,

vol. 69, no. 1, 1 January 1993 (1993-01-01), pages 277-287,
XP000879070,
ISSN: 0007-1145

D4 PEMONGE ET AL: "Effects of Materials and Extracts of *Trigonella foenum graecum* against the Stored Product Pest *Tribolium castaneum* (Herbst)",
JOURNAL OF STORED PRODUCTS RESEARCH, PERGAMON PRESS,
OXFORD, GB,
vol. 33, no. 3, 1 January 1997 (1997-01-01), pages 209-217,
XP002321880,
ISSN: 0022-474X

D5 BIN-HAFEEZ BILAL ET AL: "Immunomodulatory effects of fenugreek (*Trigonella foenum graecum* L.) extract in mice",
INTERNATIONAL IMMUNOPHARMACOLOGY, ELSEVIER,
AMSTERDAM, NL,
vol. 3, no. 2, 1 February 2003 (2003-02-01), pages 257-265,
XP002482573,
ISSN: 1567-5769

Novelty, Art. 54 EPC.

Present set of claims results from restrictions in the claimed subject-matter of claims 1-35 of the International Application.

Substantially, subject-matter is now limited to the use of seeds of *Trigonella foenum graecum* (fenugreek) in the process to obtain an extract from said plant, and no longer including leaves, roots or whole plant.

D1-D5 do explicitly make use of fenugreek seeds specifically, hence the objection on lack of novelty for claims 1-4, 7-9, 14 and 15 is here maintained on the base of what established for their corresponding claims for the international application (respectively cls. 1, 3, 6, 10, 15, 20, 21, 23-28).

Inventive step, Art. 56 EPC.

D1-D4 make specific use of fenugreek seeds, therefore the restriction made in present claims to the use of seeds does not overcome the objections on novelty (as illustrated for the corresponding claims in the international application see Item V section 3 of the International Written Opinion).

An inventive step could be recognized only for the supported examples regarding periodontitis and Herpes simplex, claims 10 and claim 12 in part, supported by examples 12 and 14, while all other examples have no Control tests and while uses like for wounds or infections (claim 11) the traditional knowledge as well as the cited prior art provide extensive explicit and implicit disclosures that anticipate such applications (see section Item V 3.4 of International Written Opinion).

Third party observations.

The third-party observation has been taken into account. The restriction to a specific part of the plant (seeds) overcomes possible objections based on said observations as long as the composition comprises fenugreek seeds extract as sole active ingredient. The present formulation of claim 1 nevertheless may include the presence of other active ingredients, thus falling in the anticipation of the literature provided by the third party observation for some aspects.

Prior art, R.42.1.b, EPC.

To meet the requirements of Rule 42(1)(b) EPC, D1-D5 should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

Amendments, Art. 123.2 EPC.

The applicants are invited to overcome the above mentioned objections by filing amended claims. The attention of the applicant is drawn to the fact that the application may not be amended in such a way that it contains subject-matter which extends beyond the content of the application as filed (Article 123(2) EPC).

Gian Paolo Panzica